



DEPARTMENT OF JUSTICE

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October 1, 2026

VIA E-MAIL ONLY: rsw@rswfire.com

Robert White
rsw@rswfire.com

Re: Petition for Public Records Disclosure Order
Oregon Governor's Office
DOJ File No.: 121010-GA0187-26

Dear Mr. White:

This letter is the Attorney General's response to your September 25, 2026, petition for disclosure under the Oregon Public Records Law, ORS 192.311 to 192.478. Your petition challenges a fee waiver decision made by the Oregon Governor's Office. You argue that the Public Records Law authorizes the Attorney General to hear your petition.

ORS 192.324(6) provides that, when fee waiver requests are denied, the Attorney General has the same authority "as when inspection of a public record is denied." That authority does not include the authority to review decisions made by elected officials. *See* ORS 192.427; Public Records Order, Oct 2, 2014, Sebens. Because your petition challenges a fee waiver decision concerning records in the custody of the Governor, an elected official, we lack jurisdiction to consider your appeal and must respectfully dismiss your petition.

Sincerely,


BENJAMIN GUTMAN
Deputy Attorney General

DEP:pjn
c via e-mail only: Cameron Miles, Government Accountability Attorney, Office of Governor Tina Kotek